

TENTATIVE RULINGS for LAW and MOTION

April 22, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven

(530) 406-6843

TENTATIVE RULING

Case: **Ballejos v. Safelite Fulfillment, Inc. et al.**
Case No. CV2025-2879

Hearing Date: **April 22, 2026** **Department Eleven** **9:00 a.m.**

The Court rules on defendants Safelite Fulfillment, Inc., Safelite Fulfillment, LLC, (collectively, “Safelite”) and Yael Torrez’s (“Torrez”) demurrer to plaintiff Xavier Ballejos’ first amended complaint (“FAC”) as follows:

- Safelite and Torrez’s demurrer to the first cause of action for physical disability harassment is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff has stated facts sufficient to constitute this cause of action. (Govt. Code §§ 12940, subd. (j), 12923; *Doe v. Department of Corrections & Rehabilitation* (2019) 43 Cal.App.5th 721, 736; *Janken v GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 63; see *Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581; *Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 876; CACI No. 2521A; FAC ¶¶ 31-33, 40, 47-56.)
- Safelite and Torrez’s demurrer to the eighth (CFRA interference) and ninth (CFRA retaliation) causes of action are **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court finds that plaintiff’s FAC fails to state facts sufficient to constitute these causes of action. (Govt. Code § 12945.2, subds. (a), (k)(1); *Moore v. Regents of University of California* (2016) 248 Cal.App.4th 216, 250 [a plaintiff alleging a CFRA interference claim under Government Code section 12945.2(a) must prove two elements: (1) the employee’s entitlement to CFRA leave rights; and (2) the employer’s interference with or denial of those rights]; *Dudley v. Department of Transportation* (2001) 90 Cal.App.4th 255, 261 [a plaintiff alleging a CFRA retaliation claim Government Code section 12945.2(k)(1) must prove four elements: (1) the defendant was an employer covered by CFRA; (2) the plaintiff was an employee eligible to take CFRA leave; (3) the plaintiff exercised the right to take leave for a qualifying CFRA purpose; and (4) the plaintiff suffered an adverse employment action because of the exercise of the right to CFRA leave]; *Faust v. California Portland Cement Co.* (2007) 150 Cal.App.4th 864, 885.) Specifically, the Court finds that plaintiff fails to allege facts that he was eligible to take CFRA leave. (*Dudley, supra*, 90 Cal.App.4th 255, 262; FAC ¶¶ 10-16, 114-115, 123-124.)
- Safelite and Torrez’s demurrer to the eleventh (failure to pay minimum wages), twelfth (failure to pay overtime wages), thirteenth (failure to pay wages owed), fourteenth (meal period liability), fifteenth (rest period liability), sixteenth (failure to provide accurate, itemized wage statements), and seventeenth (waiting time penalties) causes of action as to Torrez are **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff has stated facts sufficient to constitute these causes of action against Torrez. (Labor Code § 558.1; FAC ¶¶ 5, 41-44, 137-177.)

Plaintiff may file an amended complaint by no later than May 4, 2026. (Cal. Rules of Court, rule 3.1320(g).)

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Rocky Top Rentals, LLC v. Munoz**
Case No. CV2022-1949

Hearing Date: **April 22, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Rocky Top Rentals, LLC's unopposed motion to enforce writ of possession is **GRANTED**. (Code Civ. Proc., § 700.080, subd. (c); Mika decl., ¶¶ 3-9; Zelenka-Diatikar decl., ¶¶ 11-13.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **The People ex rel. Yolo-Solano Air Quality Management District v. Defty et al.**
 Case No. CV2024-1095

Hearing Date: **April 22, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff/cross-defendant The People ex rel. Yolo-Solano Air Quality Management District’s (“plaintiff”) request for judicial notice filed on February 27, 2026, is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Plaintiff’s supplemental request for judicial notice filed on March 19, 2026, is **DENIED**. (Evid. Code, §§ 452, subd. (d), 453.) The documents are not relevant to the Court’s determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].) Further, the Court cannot consider new evidence filed with a reply. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537–1538 [“The general rule of motion practice...is that new evidence is not permitted with reply papers”].)

Defendant/cross-complainant Spencer Defty’s (“Defty”) request for judicial notice is **DENIED**. (Evid. Code, §§ 452, subd. (d), 453.) These documents are not relevant to the Court’s determination of this motion. (*Rowland, supra*, 4 Cal.4th at p. 268, fn. 6; see *Malek Media Group LLC, supra*, 58 Cal.App.5th at p. 825; *People ex rel. Lockyer, supra*, 24 Cal.4th at p. 422.)

Plaintiff’s motion for issuance of order to show cause why Defty, Klaus Kolb (“Kolb”), Ameet Sharma (“Sharma”), and Lucy Knorr (“Knorr”) should not be held in contempt of court and/or sanctioned for their continued refusal to comply with the Court’s Protective Order entered and filed on October 1, 2025, is **DENIED**. (Code Civ. Proc., §§ 1209, subd. (a)(5), 1211, subd. (a); 1218, subd. (a), 177.5.) “When the contempt is not committed in the immediate view and presence of the court,an affidavit shall be presented to the court or judge of the facts constituting the contempt...” (Code Civ. Proc., § 1211, subd. (a); *Moore v. Superior Court of Orange County* (2020) 57 Cal.App.5th 441, 454.) Although plaintiff submitted an affidavit of contempt by attorney Matthew C. Maclear, the affidavit fails to satisfy the requirements for contempt. (*Arthur v. Superior Court of Los Angeles County* (1965) 62 Cal.2d 404, 408; *In re Ivey* (2000) 85 Cal.App.4th 793, 798 [“As a general rule, the elements of contempt include (1) a valid order, (2) knowledge of the order, (3) ability to comply with the order, and (4) willful failure to comply with the order.”]; Maclear Decl.) Specifically, the affidavit does not show Defty, Kolb, Sharma, and/or Knorr’s “willful failure to comply with the order.” (*In re Ivey, supra*, 85 Cal.App.4th at p. 798; *Little v. Superior Court of Los Angeles County* (1968) 260 Cal.App.2d 311, 316 [“[I]nability for such drastic punishment ‘should not rest upon implication or conjecture’ but rather upon an order expressing in ‘clear, specific and unequivocal’ language the act required”]; Plaintiff’s RJN, Exh. C; Maclear Decl.; Sharma Decl., ¶¶ 1-14.) The declarations submitted adequately satisfy all requirements of the Protective Order.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.